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Case Number: 26STCV10797 Hearing Date: July 14, 2026 Dept: 836

MOTION FOR ORDER APPOINTING RECEIVER

Date: 7/14/26

(1:30 PM)

Case: Pacific RBLF Funding Trust v. Bella Assets LLC, et al. (26STCV10797)

TENTATIVE RULING:

Plaintiff Pacific RBLF Funding Trust's Unopposed Motion for Order Appointing Receiver is GRANTED.

Plaintiff Pacific RBLF Funding Trust's request for judicial notice of Exhibits A and D are GRANTED pursuant to Evidence Code § 452(c). Plaintiff's request for judicial notice of Exhibits B-C are GRANTED pursuant to Evidence Code § 452(d).

I.

BACKGROUND

On April 2, 2026, plaintiff Pacific RBLF Funding Trust initiated this action against defendant Bella Assets LLC for judicial foreclosure and specific performance concerning real property located at 8524 Beverlywood Street, Los Angeles, California 90034 ("Property"). On April 24, 2026, plaintiff filed the instant motion for order appointing receiver. The motion is unopposed. Default was entered against defendant on May 27, 2026.

II.

REQUEST TO APPOINT A RECEIVER

Pursuant to CCP § 564 (b)(2), (b)(9), & (b)(11), and Civil Code § 2938, plaintiff seeks the appointment of a receiver with respect to the Property. The receiver would operate the properties and collect rents.

A. Legal Standard

Pursuant to CCP § 564(b), "a receiver may be appointed by the court in which an action or proceeding is pending, or by a judge thereof, in the following cases . . . . (2) In an action by a secured lender for foreclosure where it appears the property is in danger of being lost, removed, or materially injured, or that the conditions of the deed of trust have not been performed. . . . (9) In all other cases where necessary to preserve the property or rights of any party. . . . (11) In an action by a secured lender for specific performance of an assignment of rents provision in a deed of trust, mortgage, or separate assignment document."

Additionally, CCP § 564(b)(12) authorizes the appointment of a receiver "[i]n a case brought by an assignee under an assignment of leases, rents, issues or profits pursuant to subdivision (g) of Section 2938 of the Civil Code." Civil Code § 2938 provides that an assignment of rents in a real property secured loan transaction constitutes a present and perfected transfer of interest in the rents. These provisions authorize the appointment of a receiver to collect rents pending trial in an action to specifically enforce the terms of a deed of trust (1) assigning rents and profits to the creditor upon default or (2) providing for appointment of a receiver to take possession of the property and collect the rents and profits from it. (Mines v. Superior Court, (1932) 216 Cal. 776, 779; Turner v. Superior Court, (1977) 72 Cal.App.3d 804, 811. No showing that the property's value is insufficient to satisfy the debt is required for a "rents and profits receiver." Turner, 72 Cal.App.3d at 811.)

Appointment of a receiver is a drastic provisional remedy that the court should only grant when facts are presented by admissible evidence that clearly establish a receiver is necessary to protect the property and maintain the status quo. (Barclay Bank of California v. Superior Court ("Barclays") (1977) 69 Cal. App. 3d 593, 597; City and County of San Francisco v. Daley (1993) 16 Cal.App.4th 734, 744). The appointment of a receiver is an equitable remedy and should be used only when necessary and where other legal remedies are unavailable. (Rogers v. Smith (1946) 76 Cal.App.2d 16, 21).

B. Merits

As set forth in the motion, the original lender, Center Street Lending VIII SPE, LLC, loaned $1,870,500 to defendant on June 15, 2022, and defendant had executed a promissory note to evidence its indebtedness. (Alper Decl. ¶ 4, Ex. 1.) The promissory note was then secured by a Deed of Trust, Security Agreement and Fixture Filing (with Assignment of Leases and Rents) ("Deed of Trust") on the Property, which was recorded on June 23, 2022. (Alper Decl. ¶ 4 & RJN Ex. A.) On March 18, 2026, the Deed of Trust was assigned to plaintiff. (Alper Decl. ¶ 5 & Ex. 2.)

Pursuant to the Deed of Trust, defendant consented to the appointment of a receiver to manage the Property and collect rents in the event of default. (Alper Decl. ¶ 4 & RJN, Ex. A at ¶ 12.) Plaintiff has shown that defendant has been in default since January 15, 2026. (Alper Decl. ¶ 6 & RJN Ex. D [Notice of Default].) Despite defendant's failure to cure the default, plaintiff is informed that the Property is currently occupied by a renter and that defendant is diverting the rent proceeds for its own benefit. (Alper Decl. ¶ 8.)

As contemplated by the contractual agreement between the parties, a receiver may be appointed to manage the Property and to collect and receive all rents of the Property. (Alper Decl. ¶ 4 & RJN, Ex. A at ¶ 12; see Barclays, 69 Cal.App.3d at 602.) Without the appointment of a receivership, plaintiff's right to collect rents is hindered. Under CCP §§ 564(b)(11) and (12), petitioner may be entitled to the appointment of a receiver over the Property as a secured lender to collect rents.

The Court notes, however, that appointment of a receiver would not be warranted under CCP § 564(b)(2), as plaintiff makes no meaningfully showing that the Property is at risk of being lost or materially injured. While plaintiff states that defendant's related company was involved in an involuntary bankruptcy proceeding (RJN Ex. C-D) and that defendant's principal appears to be absent and has refused to communicate with plaintiff (Alper Decl. ¶¶ 10-12), neither circumstance indicates that the Property is at risk and is in need of protection or oversight by a receiver to mitigate against such risk.

Lastly, given that defendant is in default and that plaintiff presumably may soon be able to obtain the relief it seeks in its Complaint by way of entry of a default judgment, the Court questions whether the expensive, drastic, and extreme remedy of appointing a receiver to oversee the property for a brief period of time pre-judgment in warranted.

III. CONCLUSION

Subject to plaintiff convincing the Court at the hearing on this matter that appointment of a receiver to oversee the property pre-judgment is desired and warranted now that defendant is in default, the motion of appointment of a receiver would be GRANTED for the purpose of collecting rents from the Property.

If the Court GRANTS the request for appointment of a receiver, the Court finds that the appointment of Ryan C. Baker as receiver is appropriate based on his experience and the reasonable rates that he and his staff would charge. (Baker Decl. ¶¶ 1-3 & Exs. 1.). In addition, the Court would issue the requested preliminary injunction in aid of the receiver's duties to restrain defendant and its agents from interfering with the receivership. Lastly, the Court would sign the Proposed Order for Appointment of Receiver, electronically received 4/24/26, with the following exceptions: (1) paragraph 2 shall be modified to reflect that the property placed in receivership is described in Attachment 2a; and (2) the Court declines to allow the receiver to employ "The Ryan Firm" as counsel at a "reasonable mkt rate." The Ryan Firm represents the plaintiff in this action, and its simultaneous representation of the Receiver would present a conflict of interest, as the Receiver's duties, obligations, and loyalties are not to any one party in this action.